

# PUBLIC SUBMISSION

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## Submitter Information

**Email:** [REDACTED]  
**Organization:** Data Foundation

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## General Comment

Attached find the comment from the Data Foundation

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## Attachments

AI RFI Response

March 15, 2025

AI Action Plan  
Attn: Faisal D'Souza, NCO  
2415 Eisenhower Avenue  
Alexandria, VA 22314, USA

RE: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Dear Mr. D'Souza:

We appreciate the opportunity to provide input on the development of the AI Action Plan aimed at sustaining and enhancing America's AI dominance. This response recommends the adoption of the Data Foundation's "AI-Ready Data Policy" framework, created in collaboration with our Data Coalition members, or a similar approach, as a critical component of the Plan to ensure the United States maintains its global leadership in AI innovation.

At the core of America's AI leadership is the quality, accessibility, and responsible governance of the data that powers AI systems. The Data Foundation's "Data Policy in the Age of AI: A Guide to Using Data for Artificial Intelligence"<sup>1</sup> report, published in August 2024, provides a practical, balanced approach to data management that maximizes innovation potential while ensuring data quality and integrity. This comprehensive report, developed by a team of data policy experts, identifies the essential components of sound data policy in the age of AI and presents a practical tool for policymakers to assess data readiness for AI applications. This framework would enable the federal government to:

1. Enhance American innovation by ensuring AI systems have access to high-quality, reliable data
2. Streamline access to government data assets for AI development
3. Establish clear standards for data governance without imposing unnecessary regulatory burdens
4. Strengthen America's competitive position by improving the foundational data infrastructure upon which AI systems rely

### **The Importance of Data Policy for AI Innovation**

As articulated in the Data Foundation's August 2024 report "Data Policy in the Age of AI: A Guide to Using Data for Artificial Intelligence," data is the driving force behind the AI revolution. This landmark report represents a significant contribution to the national conversation on AI governance, offering policymakers a framework specifically designed to address the complex challenges at the intersection of data policy and AI development.

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<sup>1</sup> O'Toole, K., C. Turbes, and A. Freeman. (2024). Data Policy in the Age of AI: A Guide to Using Data for Artificial Intelligence. Washington, D.C.: Data Foundation. <https://doi.org/10.15868/socialsector.44213>

The report emphasizes that "at the core of the artificial intelligence (AI) revolution is data. Data are used to train machine learning models and shape the outputs of AI systems in ways that directly impact human lives and business models." It further explains that "to build safe and effective AI systems, the data that contribute to AI models must be high-quality and governed responsibly."

The quality, reliability, and availability of data directly impact the performance and capabilities of AI systems. Without a coordinated approach to data policy, American AI development risks being hindered by unreliable data sources, inconsistent governance practices, and inefficient access protocols.

Effective, coordinated data policy is essential for AI systems to function as intended and deliver reliable results. By implementing the comprehensive data policy framework outlined in the Data Foundation's report, the federal government can help ensure that American AI developers have appropriate access to the highest quality data possible, thereby supporting continued innovation and maintaining U.S. technological leadership.

### **The AI-Ready Data Policy Framework**

The Data Foundation's report introduces the AI-Ready Data Policy Tool, a structured approach designed to guide policymakers' considerations related to data for AI. As the report states, this tool is intended to "orient policymakers' considerations related to data for AI, guiding the parameters for if, how, and what data should contribute to AI models." The framework categorizes essential elements for responsible AI data use into three key components:

#### **1. High Quality Data**

This component focuses on ensuring data integrity through:

- Processes to monitor and improve data accuracy and completeness
- Standards for identifying and addressing gaps in data
- Integration of diverse, representative data to improve AI performance
- Mechanisms to verify that data used in AI systems reflect real data points

High-quality data is fundamental to developing effective AI systems. By implementing this component, the government can help ensure that AI developers have access to reliable, accurate data that will lead to better AI outcomes and greater innovation.

#### **2. Effective Governance Principles**

This component addresses data transparency and accountability through:

- Clear documentation of data used to train AI models
- Appropriate metadata to provide necessary context
- Oversight mechanisms for monitoring data policies and practices
- Evaluation metrics for assessing data use effectiveness

Effective governance enhances innovation by establishing clear rules of the road, reducing uncertainty for developers, and creating a stable environment for AI investment and development.

#### **3. Technical Capacity**

This component focuses on infrastructure security and innovation through:

- Strong data security measures to protect AI development data
- Regular updates to data security practices
- Contingency plans for data infrastructure disruptions
- Leveraging government purchasing power to influence AI model development
- Standards for procurement of AI tools and services

Building robust technical capacity ensures that American AI developers have the infrastructure and resources necessary to maintain our technological edge over competitors like China.

### **Benefits of Implementing the AI-Ready Data Policy Framework**

Adopting this framework as part of the AI Action Plan would yield several benefits that align with the goal of sustaining American AI dominance:

#### *Accelerating Innovation*

By providing clear guidance on data governance without imposing unnecessary restrictions, the framework can help American companies innovate more rapidly. Clear standards and processes reduce uncertainty and legal risks, allowing businesses to focus on development rather than compliance concerns.

#### *Enhancing Data Quality and Reliability*

The framework can help ensure that AI systems are trained on high-quality, reliable data, leading to more accurate and trustworthy AI applications. This would accelerate adoption of AI technologies across various sectors of the economy, further strengthening America's competitive position.

#### *Creating a Competitive Advantage*

By taking a leadership role in this area, the United States can set standards that align with American values and interests, rather than allowing competitors like China to define global norms.

#### *Enabling Responsible Data Sharing with Appropriate Protections*

The framework's incorporation of sophisticated approaches to data protection, such as the Five Safes model, enables more innovative data sharing while maintaining appropriate safeguards. This balanced approach allows for maximizing the utility of data for AI development without compromising on security or confidentiality. Rather than defaulting to overly restrictive data policies that stifle innovation, this nuanced approach enables data to be shared under appropriate conditions with proper controls, unlocking more potential for American innovation.

### **Recommended Implementation Approach**

Building on the Data Foundation's research and recommendations, we propose the following implementation approach that aligns with these findings:

- **Leverage Existing Infrastructure:** Rather than creating entirely new systems, the government should focus on improving and standardizing federal agencies' use of existing technologies and databases. This approach maximizes existing investments while enabling more innovative uses of data for AI.

- **Align with the Federal Data Strategy:** Leverage the Federal Data Strategy Framework: Incorporate the principles and practices established in OMB Memorandum M-19-18<sup>2</sup> as foundational elements of the AI Action Plan. This established framework provides a comprehensive structure for ensuring federal data is treated as a strategic asset while maintaining appropriate protections. The Strategy's emphasis on ethical governance, conscious design, and learning culture aligns perfectly with the data requirements for responsible AI development.
- **Clarify Roles and Responsibilities:** Provide clear guidance on federal data officials' responsibilities and roles, particularly as they relate to AI readiness.<sup>3</sup> This clarity is essential for effective implementation of any data policy framework and will ensure accountability.
- **Strengthen Data Governance:** Implement effective governance principles that ensure mechanisms for transparency and public accountability. Clear governance practices will enable AI tools and systems to be developed securely and responsibly while upholding public interests.
- **Build Technical Capacity:** Invest in workforce development initiatives to ensure federal employees have the necessary skills to manage AI-ready data systems. The effectiveness of AI tools depends on the literacy and technical expertise of those working with them.
- **Coordinate Across Agencies:** Break down data silos by facilitating easier discovery and access to relevant datasets across government. Comprehensive data inventories and strong Chief Data Officer roles will enable agencies to share and leverage data more effectively for AI applications.
- **Implement "Open by Default" Principles:** Follow the January 2025 White House Office of Management and Budget (OMB) guidance on implementing the OPEN Government Data Act,<sup>4</sup> which establishes that federal data should be maintained in open, machine-readable formats and made publicly available unless specific privacy, security, or other legitimate concerns prevent such sharing. This balanced approach would provide AI developers with broader access to valuable training data while still maintaining necessary protections.
- **Adopt the Five Safes Framework for Data Protection:**<sup>5</sup> Implement a sophisticated model for evaluating and managing privacy risks based on the Five Safes framework highlighted in the Data Foundation's research. This multi-dimensional approach enables responsible data sharing by considering: the people accessing the data (safe people), the projects or purposes for which data is used (safe projects), the settings or environments in which data is accessed (safe settings), the data itself (safe data), and the outputs produced from the data (safe outputs). This framework allows for calibrating controls like vetting authorized users, pre-specifying approved use cases, implementing secure technical environments, applying statistical techniques to protect individual privacy, and reviewing outputs for potential privacy breaches.

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<sup>2</sup> Office of Management and Budget. (2019, June 4). Memorandum M-19-18: Federal Data Strategy - A Framework for Consistency. Executive Office of the President. Retrieved from <https://www.whitehouse.gov/wp-content/uploads/2019/06/M-19-18.pdf>

<sup>3</sup> O'Toole, K. Five Years of Progress and the Road Ahead: Insights from the 2024 Survey of Federal Chief Data Officers. Washington, D.C.: Data Foundation and Deloitte, 2024. Available at: <https://datafoundation.org/news/reports/490/490-Five-Years-of-Progress-and-the-Road-Ahead>

<sup>4</sup> Off. of Mgmt. & Budget, Exec. Off. of the President, OMB M-25-05, Phase 2 Implementation of the Foundations for Evidence-Based Policymaking Act of 2018: Open Government Data Access and Management Guidance (Jan. 15, 2025)

<sup>5</sup> Turbes, Corinna, Implementing the Vision of the Evidence Act: A Risk-Based Approach to Data Sharing Using the Five Safes Model. Washington, D.C.: Data Foundation 2024. Available at: <https://datafoundation.org/news/evidence-act-hub/56/56-Implementing-the-Vision-of-the-Evidence-Act>

## **Conclusion**

The AI-Ready Data Policy framework represents a balanced approach to data governance that would support American innovation while ensuring the integrity and quality of data used in AI systems. By incorporating this framework into the AI Action Plan, the Administration would address a fundamental aspect of AI development that is often overlooked: the quality and governance of the data upon which AI systems depend.

This approach would help ensure that American AI development continues to lead the world by providing developers with access to high-quality, well-governed data while avoiding unnecessary regulatory burdens that could hamper innovation.

Thank you for considering this recommendation. We would be pleased to provide additional information or clarification as needed.

Sincerely,

Corinna Turbes  
Director, Center for Data Policy  
Data Foundation

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